

Amendment No. 1 to HB1162

White
Signature of Sponsor

AMEND Senate Bill No. 1020*

House Bill No. 1162

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 49-13-105(a), is amended by deleting the third sentence of the subsection and substituting instead the following:

Except as provided in § 49-13-138, a public charter school that is authorized by the commission must operate within the geographic boundaries of the local board of education that denied approval of the initial public charter school application.

SECTION 2. Tennessee Code Annotated, Section 49-13-113(d)(4), is amended by deleting subdivision (E) and substituting instead the following:

(E) Students residing within the geographic boundaries of the LEA in which the public charter school is located who were enrolled in another public school during the previous school year. If the public charter school is authorized in a county LEA, then this preference includes students who reside in the county and who were enrolled in the previous school year in another LEA located in the same county; and

SECTION 3. Tennessee Code Annotated, Section 49-13-136(c), is amended by adding the following as a new subdivision:

(7) An LEA in which a public charter school has not been authorized, but in which one (1) or more public charter schools are using available buildings or facilities pursuant to § 49-13-138, is not required to comply with this subsection (c).

SECTION 4. Tennessee Code Annotated, Title 49, Chapter 13, is amended by adding the following as a new section:

49-13-138. Public charter school limited use of available buildings or facilities located outside the authorizing LEA's jurisdiction.

(a) A public charter school authorized in the county LEA for a county in which only one (1) city school system operates may use available buildings or facilities located within the geographic boundaries of the city school system located in the same county if:

(1) The public charter school needs additional space, facilities, or buildings to serve the students of the public charter school;

(2) The buildings or facilities are not located in an LEA that:

(A) Has entered into a written agreement pursuant to § 49-2-140;

or

(B) Was established on or after January 1, 2014; and

(3) The public charter school enters into a written agreement for the lease of the buildings or facilities, or portions thereof, for educational purposes.

(b)

(1) A public charter school's use of facilities located within the geographic boundaries of a city school system pursuant to this section does not alter or expand the operation, control, management, or enrollment jurisdiction of the public charter school, its authorizer, or the local board of education for the county LEA in which the public charter school is authorized.

(2) Students who reside in the county and who are enrolled in a public charter school that is using facilities located within the geographic boundaries of a city school system pursuant to this section are the students of the public charter school's authorizer and must not be considered out-of-district students for any purpose, including, but not limited to, funding and enrollment.

SECTION 5. The heading in this act is for reference purposes only and does not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the heading in any compilation or publication containing this act.

SECTION 6. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.